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Case Number: 25STCV06329 Hearing Date: September 1, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

STEPHEN NOONOO, et al.,

vs.

ALENA GOCO, et al.

Case

No.: 25STCV30212

Hearing Date: September 1, 2026

Plaintiffs/Moving Cross-Defendants Stephen

Noonoo's and Catherine Leach's amended motion for attorneys' fees against Defendants/Cross-Complainants Alena Goco and SoapyMania,

Inc. is granted in the total reduced amount of \$39,360.37, comprised of

\$37,500.50 in attorneys' fees and \$1,859.87 in costs.

Defendants/Cross-Complainants Alena Goco's
and SoapyMania, Inc.'s motion for leave to amend the cross-complaint is denied.

Plaintiffs/Moving

Cross-Defendants Stephen Noonoo ("Noonoo") and Catherine Leach ("Leach")
("Plaintiffs") move on an amended motion for an order awarding their attorneys'
fees and costs against Defendants/Cross-Complainants Alena Goco ("Goco") and
SoapyMania, Inc. ("SoapyMania")
("Defendants") in the total amount of \$39,420.37, comprised of \$37,500.50
for attorney's fees and \$1,919.87 in costs^[1] as the
prevailing party on the anti-SLAPP motion.
(Amended Notice of Motion, pg. 2; C.C.P. §§425.16(c)(1).)

1.

Motion for Attorneys' Fees and Costs

Background

On March 3, 2026, this Court
granted Plaintiffs' anti-SLAPP motion in its entirety and struck Defendants'
Cross-Complaint as to Noonoo and Leach only. (03/3/26
Minute Order, pg. 17.) This Court's
March 3, 2026, ruling noted that Plaintiffs may separately move for attorneys'
fees and costs incurred in bringing their anti-SLAPP motion. (03/3/26 Minute Order, pg. 17.)

Plaintiffs

filed their initial motion on May 15, 2026.
Plaintiffs filed their amended motion on May 18, 2026. Defendants filed their opposition on August
19, 2026. Plaintiffs filed their reply
on August 25, 2026.

Defendants

object to Plaintiffs' motion as untimely.
Defendants' objection is unavailing.
The "time limits imposed by Cal. Rules of Court, rules 3.1702, 8.104,
for filing a motion for attorney fees under Code Civ. Proc., § 425.16, subd.
(c), do not commence to run until entry of judgment at the conclusion of the
litigation." (Carpenter v. Jack in the Box Corp. (2007)
151 Cal.App.4th 454, 468.) CRC, Rule
3.1702's "'outside' time limit . . . was intended to be entry of final

judgment—not entry of a prejudgment appealable order.” (Id. at pgs. 458, 468.) Thus, only a “judgment at the conclusion of the litigation” is a “final judgment.” (Id.)

Neither

the 3/3/26 Minute Order nor Plaintiffs’ March 4 notice of the order constitutes “a document entitled ‘Notice of Entry’ of judgment or a filed endorsed copy of the judgment,” such as would trigger the 60-day deadline to bring a motion for fees. (CRC, Rule

8.104(a)(1)(A)-(B).) Defendants did not

serve any notice of judgment related to the 3/3/26 Minute Order. (See CRC, Rule 8.104(a)(1)(B).) Therefore, Plaintiffs’ motion is timely.

Discussion

C.C.P.

§425.16(c)(1) provides, in part, “in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (C.C.P. §425.16(c)(1), emphasis added.) The award of fees and costs to a successful anti-SLAPP defendant is mandatory pursuant to statute. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131.)

Here,

Plaintiffs/Moving Cross-Defendants were the prevailing party in the anti-SLAPP Motion. (See 3/3/26 Minute Order.)

Reasonable Fees

The California Supreme Court has determined the lodestar method is the proper mechanism to calculate attorneys’ fees under C.C.P. §425.16(c). (See Ketchum, 24 Cal.4th at pg. 1136.) To calculate a lodestar amount, the Court must first determine the reasonableness of the hourly rates sought by Plaintiffs’ counsel. The “reasonable hourly rate” applicable under the lodestar method is the rate “prevailing in the community for similar work.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) “The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success

or failure, and other circumstances in the case." (Id. at pg. 1096.)

Plaintiffs' Counsel declares the following

hourly rates in this case: (1) \$810.00 for managing attorney Jeffrey A. Cohen; (2)

\$650.00 for senior counsel Shanen R. Prout; and (3) \$540.00 for associate

attorney Orli N. Chagnon. (Decl. of Cohen

¶¶23-28.) The Court determines based on

its experience that Plaintiffs' Counsel's hourly rates are reasonable in their

community of practice.

An anti-SLAPP motion is complex in nature and requires the

submission of declarations and evidence akin to a motion for summary judgment

or a preliminary injunction. Plaintiffs' counsel's declaration includes 61.15

hours of billing entries for conferencing with the client, preparing supporting

declarations, legal research, drafting and filing the motion, reviewing the

opposition and preparing the reply brief, preparing for the hearing on the

motion, and attending the hearing.

(Decl. of Cohen ¶23.) Plaintiffs'

efforts resulted in the complete grant of the anti-SLAPP motion. Accordingly, Plaintiffs' requested attorneys'

fees are reasonable.

Billed Hours

"California courts do not require detailed

time records, and trial courts have discretion to award fees based on

declarations of counsel describing the work they have done and the court's own

view of the number of hours reasonably spent." (Syers

Properties III, Inc. v. Rankin

(2014) 226 Cal.App.4th 691, 698-699.)

Plaintiffs' counsel declares they incurred 51.15 billed hours related to the anti-SLAPP motion and the motion for attorneys' fees: (1)

4.45 for managing attorney Jeffrey A. Cohen (\$3,604.50); (2) 29.8 hours for

senior counsel Shanen R. Prout (\$19,370.00); and (3) 26.9 hours for associate

attorney Orli N. Chagnon (\$14,526.00). (Decl. of Cohen ¶¶23-28.) Plaintiffs' counsel requests an additional

5.0 hours to review the opposition, prepare a reply brief, prepare for the

instant hearing, and attend the hearing on attorneys' fees for a total of 61.15

hours. (Decl. of Cohen ¶26.) Plaintiffs calculate their lodestar for fees

to be \$37,500.50. (Decl. of Cohen

¶27.)

Here, Plaintiffs' counsel does not provide a billing statement of the attorneys' fees and costs incurred on the motion and instead summarizes the work completed on the anti-SLAPP motion, which is an acceptable format for an attorneys' fees motion. (See Decl. of Cohen ¶¶23-28.) Plaintiffs' counsel's declaration provides a comprehensive description of the tasks that were undertaken in litigating an anti-SLAPP motion that was directed to seven cross-claims.

Defendants contend that the number of hours claimed by Plaintiffs alone has a "magnitude" that renders them not credible, but Defendants do not provide any competent evidence to support that supposition. Verified time entries of attorneys are entitled to a presumption of credibility, which extends to an attorney's professional judgment as to whether time spent was reasonably necessary to the litigation. (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396 ["We think the verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous."].) The Court determines that Plaintiffs' counsel's description of the hours, the number of hours incurred, and the total lodestar is more than reasonable for an anti-SLAPP motion.

Accordingly, the Court calculates the total attorneys' fees to be \$37,500.50.

Costs

Plaintiffs request \$1,859.87 in costs for filing fees and court reporter fees related to the anti-SLAPP motion and the instant motion. (Decl. of Cohen ¶¶31-36.) The Court awards Plaintiffs' request for costs in the reduced requested amount of \$1,859.87.[2]

Accordingly, Plaintiffs' request for costs is granted in the reduced total amount of \$1,859.87.

Conclusion

Plaintiffs' motion for attorneys' fees and costs is granted in the total amount of \$39,360.37,

comprised of \$37,500.50 in attorneys' fees and \$1,859.87 in costs.

Moving

Party to give notice.

2.

Motion for Leave to Amend Cross-Complaint

"The

court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (C.C.P.

§473(a)(1).)

"Trial

courts are vested with the discretion to allow amendments to pleadings 'in furtherance of justice.' That trial courts are to liberally permit such amendments, at any stage of the proceeding, has been established policy in this state since 1901." (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 488-489.)

CRC

Rule 3.1321(a) requires that a motion to amend must: "[i]nclude a copy of the proposed . . . amended pleading . . . [and] state what allegations in the previous pleading are proposed to be [deleted and/or added], if any, and where, by page, paragraph, and line number, the [deleted and/or additional] allegations are located."

CRC

Rule 3.1324(b) provides, as follows: "[a] separate declaration must accompany the motion and must specify: (1) [t]he effect of the amendment; (2) [w]hy the amendment is necessary and proper; (3) [w]hen the facts giving rise to the amended allegations were discovered; and (4) [t]he reasons why the request for amendment was not made earlier."

Defendants/Cross-Complainants'

motion fails to comply with CRC Rule 3.1324(a). The motion includes a copy of the proposed amended cross-complaint. (Decl. of Goco ¶5, Exh. A.) However, Defendants/Cross-Complainants' motion fails to set forth the allegations proposed to be added and deleted, and where, by page, paragraph, and line number.

(See

Motion, pgs. 3-4; Decl. of Tanaka ¶3; Decl. of Goco ¶3 ["The proposed First Amended Cross-Complaint removes allegations that were the subject of the prior motion to strike and limits the claims to non-communicative conduct."].)

Defendants/Cross-Complainants'

motion does not comply with CRC Rule 3.1324(b).

P Defendants/Cross-Complainants failed to attach a declaration specifying the effect of the amendments and explaining why the amendments are necessary and proper. Defendants/Cross-Complainants' motion does not state when the facts giving rise to substantive amended allegations were discovered and why the request for amendment was not made earlier.

Further,

the anti-SLAPP statute does not authorize a trial court to permit a post-ruling amendment that effectively reverses the consequences of an anti-SLAPP order. C.C.P. §425.16, does not create any mechanism by which a losing party can amend to avoid the order's effect. Once the anti-SLAPP motion is granted, the court's authority to revisit that ruling is governed exclusively by section 1008 and the rules governing appeal. (Le Francois v. Goel (2005) 35 Cal.4th 1094, 1107-1108 [a court has no authority to reconsider a prior interim order on a motion not complying with section 1008]; Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1499 ["section 1008 is jurisdictional."].)

"The

purpose of section 425.16 is to allow courts to promptly expose and dismiss meritless and harassing claims. To allow [plaintiff] to replead against the party who successfully moved to strike the complaint would frustrate the purpose of the statute." (Simmons v.

Allstate Insurance Co. (2001) 92 Cal.App.4th 1068, 1074.) "Allowing a SLAPP plaintiff leave to amend the complaint once the court finds the prima facie showing has been met would

completely undermine the statute by providing the pleader a ready escape from section 425.16's quick dismissal remedy. Instead of having to show a probability of success on the merits, the SLAPP plaintiff would be able to go back to the drawing board with a second opportunity to disguise the vexatious nature of the suit through more artful pleading. This would trigger a second round of pleadings, a fresh motion to strike, and inevitably another request for leave to amend." (Id. at pg. 1073.)

Our

courts have consistently followed the rule against allowing pleadings amendments after dismissal on an anti-SLAPP motion. (See, e.g., *City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 773 [affirming denial of leave to amend against prevailing anti-SLAPP defendant]; *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1294 ["[A] court abuses its discretion when it permits a plaintiff to amend her complaint to add a new claim against the defendant who successfully brought an anti-SLAPP motion"].) This rule applies with full force here. Where a cross-complainant's pleading has been stricken in its entirety under C.C.P. §425.16, the cross-complainant may not obtain leave to replead new claims against the prevailing cross-defendants.

Based

on the foregoing, Defendants/Cross-Complainants' motion for leave to amend their Cross-Complaint is denied.

Conclusion

Defendants/Cross-Complainants' motion for leave to amend their Cross-Complaint is denied.

Moving Party to give notice.

Dated: September _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court

[1]

The Court notes Plaintiff's amended notice contains the figure of \$1,919.87 for costs, while the amended motion and

amended Declaration of Cohen request \$1,859.87 in costs.

Since the value requested in the amended motion is less than the value requested in the amended notice, the discrepancy is not material.

[2] The Court notes this value is noted as reduced because it is less than the amount requested in the amended notice of motion.